

VCU335868 Castillo, Destani vs. Kaweah Delta Health Care District

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-03

Motion: Demurrer

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Re: Castillo, Destani vs. Kaweah Delta Health Care District

Case No.: VCU335868

Date: September 3, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Demurrer

Tentative Ruling: To sustain the demurrer without leave to amend.

Facts

Plaintiff sues Defendant Kaweah Delta Health Care District, alleged to be a California non-profit corporation, and Lucille Gibbs for the following:

1. Failure to Pay Overtime Compensation (Labor Code sections 203, 218.5, 512, 515.5, 558, 1194, and 1198)
2. Failure to Pay Minimum Wage (Labor Code sections 218, 1194, 1194.2)
3. Failure to Provide Meal Periods (Labor Code sections 218.5, 226.7, 512; Wage Order 2001)
4. Failure to Provide Rest Breaks (Labor Code sections 218.5, 226.7; Wage Order 2001.)
5. Failure to Issue Accurate and Itemized Wage Statements (Labor Code section 226)
6. Failure to Indemnify (Labor Code section 2802.)

7. Unlawful Business Practices in Violation of B&P Code 17200

Defendants Kaweah and Gibbs demurrer to each cause of action. Kaweah seeks judicial notice of its status as a public entity. As such, Kaweah argues that the Labor Code violations alleged herein cannot be asserted against a public entity. Further, that Gibbs cannot be liable for such violations personally where the employer, Kaweah, is not liable.

No opposition appears filed.

Authority and Analysis

Judicial Notice

Kaweah seeks judicial notice that it is a local healthcare district and political sub-division of the State of California via Resolution No. 61 729 recorded with the Tulare County Recorder's Office on March 31, 1961 and Statements of Facts filed with the Secretary of State of California.

Evidence Code sections 452(c) and (h), respectively, permit a court, in its discretion, to take judicial notice of the existence and recordation of a document. Further, "a court may take judicial notice of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face." (Scott v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 743, 755.)

Additionally, "A court may take judicial notice of documents in its own records and those reflecting the official acts of local and state agencies, including resolutions, minutes, and agendas. (Evid. Code, § 452, subds. (c), (d), (h); see Associated Builders & Contractors, Inc. v. San Francisco Airports Com. (1999) 21 Cal.4th 352, 375, fn. 4)" (Julian Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist. (2021) 62 Cal.App.5th 583, 600.)

Under Elmore v. Oak Valley Hospital Dist. (1988) 204 Cal.App.3d 716, 721, the statement filed with the Secretary of State become a public record and a document of which the court may properly take judicial notice. The Court therefore takes judicial notice of this document, as well as the "facts that can be deduced, and/or clearly derived from, its legal effect, such as the names and dates contained in the document, and the legal consequences of the document." (Julian Volunteer Fire Co. Assn, supra, 62 Cal.App.5th at 600.)

Therefore, the Court finds Kaweah has established itself as a public entity via judicial notice.

Demurrer

The purpose of a demurrer is to test whether a complaint "states facts sufficient to constitute a cause of action upon which relief may be based." (Young v. Gannon (2002) 97 Cal.App.4th 209, 220. To state a cause of action, a plaintiff must allege facts to support his or her claims, and it is improper and insufficient for a plaintiff to simply plead general conclusions. (Careau v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 11371, 1390.) The complaint must contain facts sufficient to establish every element of that cause of action, and thus a court should sustain the demurrer if "the defendants negate any essential element of a particular cause of action." (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-80)

To determine whether the complaint states facts sufficient to constitute a cause of action, the trial court may consider all material facts pleaded in the complaint and those that arise by reasonable implication therefrom; it may not consider contentions, deductions, or conclusion of fact or law (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.)

It is well-settled that all well-pled material facts in the complaint are assumed to be true for the purpose of the demurer. (C & H Foods v. Hartford Ins. Co. (1984) 163 Cal.App.3d 1055, 1062) But “doubt in the complaint may be resolved against plaintiff and facts not alleged are presumed not to exist. (Id.)

Labor Code and Public Entity Status

The Labor Code applies only to private sector employees unless a Labor Code provision is “specifically made applicable to public employees.” (Campbell v. Regents of Univ. of California (2005) 35 Cal. 4th 311, 334; “[U]nless Labor Code provisions are specifically made applicable to public employers, they only apply to employers in the private sector.” (Johnson v. Arvin-Edison Water Storage District (2009) 174 Cal.App.4th 729, 733)

First Cause of Action – Failure to Pay Overtime Wages under Labor Code sections 218.5, 512, 515.5, 558 and 1194

Labor Code section 220 provides in relevant part: “Sections 200 to 211, inclusive, and Section 215 to 219, inclusive, do not apply to the payment of wages of employees directly employed by any county, incorporated city, or town, or other municipal corporation.” (Lab. Code, § 220, subd. (b).)

Although Labor Code section 220 does not define a “other municipal corporation” the Court notes that this term has been defined as:

“ ‘ ‘A municipal corporation proper is created mainly for the interest, advantage, and convenience of the locality and of its people. The primary idea is an agency to regulate and administer the interior concerns of the locality in matters peculiar to the place incorporated, and not common to the state or people at large.’ ” ([In re Madera Irrigation District (1891) 92 Cal. 296.] 323.) The Legislature has the power to create such corporations to serve a specific public purpose, and it need only grant them the limited powers necessary to serve that purpose. (Id. at p. 318.) Madera made clear that “[t]he municipal corporations which may be thus created are not limited to cities and towns.” (Id. at p. 319.) Rather, they may be formed as “mere agencies of the state in local government, without any powers except such as the legislature may confer upon them, and ... at all times subject to a revocation of such power.” (Id. at pp. 319–320.) Subsequently, Morrison v. Smith Bros. (1930) 211 Cal. 36, 39 [293 P. 53] distinguished between “two different species” of public corporations for tort law purposes. While incorporated cities or towns constitute “municipal corporation[s] proper” (id. at p. 40), quasi-municipal corporations encompass organizations created to assist state or local governments in providing a public service (id. at pp. 40–41). Generally, the term “municipal corporation” has been understood to include both categories. (See id. at p. 41.)” (Stone v. Alameda Health Sys. (2024) 16 Cal. 5th 1040, 1070.)

Therefore, this definition of municipal corporation appears to encompass Kaweah as a public healthcare district.

No claim, therefore, lies under section 218.5

The Court agrees that Labor Code sections 512 and 515.5 do not pertain to overtime compensation issues relevant here as section 512 discusses meal periods and section 515.5 discusses overtime compensation in the computer software filed. Further this cause of action’s allegations only relate to overtime compensation and that Plaintiff has not, therefore, set forth a basis for liability under sections 512 and 515.5. Moreover, under the same analysis as above, neither 512 nor 515.5 appear to be made specifically applicable to public entities.

Section 558 provides for the recovery of penalties for violations, does not provide a separate basis for liability and does not expressly make itself applicable to public entities.

Finally section 1194 of the Labor Code is not made expressly applicable to public entities. (*Curcini v. County of Alameda* (2008) 164 Cal.App.4th 629, 643.)

The Court, therefore, sustains the demurrer without leave to amend as to the first cause of action as to Kaweah.

Second Cause of Action – Failure to Pay Minimum Wage under Labor Code section 218 and 1194.2

As noted above, Labor Code section 220 provides in relevant part: "Sections 200 to 211, inclusive, and Section 215 to 219, inclusive, do not apply to the payment of wages of employees directly employed by any county, incorporated city, or town, or other municipal corporation." (Lab. Code, § 220, subd. (b).) As such, no cause of action against Kaweah lies under section 218.

Labor Code section 1194.2 as to recovery of liquidated damages does not appear to create liability and, in any event, is not made expressly applicable to public entities.

The Court, therefore, sustains the demurrer without leave to amend as to the second cause of action as to Kaweah.

Third Cause of Action – Failure to Provide Meal Periods under Labor Code section 512 and Fourth Cause of Action – Failure to Provide Rest Periods under Labor Code section 226.7

Public entities are not subject to the meal and rest break statutes of Labor Code sections 226.7 and 512. (*California Correctional Peace Officers' Association v. State* (2010) 188 Cal.App.4th 646, 652-654; see also *Allen*, supra, 86 Cal.App.5th at 597.)

The Court, therefore, sustains the demurrer to the third and fourth causes of action without leave to amend as to Kaweah.

Fifth Cause of Action – Failure to Provide Accurate Wage Statements under Labor Code section 226(a)

Similarly, section 226 does not appear to make itself expressly applicable to public entities. (*Johnson*, supra, 174 Cal. App. 4th at 733.) The Court, therefore, sustains the demurrer without leave to amend as to the fifth cause of action.

Sixth Cause of Action – Failure to Reimburse under Labor Code section 2802

Similarly, section 2802 does not appear to make itself expressly applicable to public entities. (*Johnson*, supra, 174 Cal. App. 4th at 733; see also *Allen*, supra, 86 Cal.App.5th at 597.)

The Court, therefore, sustains the demurrer without leave to amend as to the sixth cause of action as to Kaweah.

Seventh Cause of Action - Unlawful Business Practices in Violation of B&P Code 17200

The Court, having sustained the demurrer to the prior causes of action, finds the seventh cause of action derivative and sustains the demurrer on that basis.

Additionally, Business and Professions Code section 17200, et seq, permits recovery against “persons” who engage in unfair competition in the form of damages and injunctive relief (See Bus. & Prof. Code §§ 17203-17205).

Kaweah has been established as a “public entity” above (Gov. Code, § 811.2) and “therefore, not a ‘person’ within the meaning of the Unfair Practices Act.” (California Med. Ass’n, Inc. v. Regents of Univ. of California (2000) 79 Cal. App. 4th 542, 551, as applied to the Regents as a public entity)

Therefore, Plaintiff cannot prevail on claims of unfair competition under section 17200 against a public entity. The Court sustains the demurrer to the seventh cause of action without leave to amend as to Kaweah.

Application to Defendant Gibbs

As to Defendant Gibbs, the alleged employee of Defendant Kaweah, Plaintiff seeks to establish liability under Labor Code section 558.1, which states:

(a) Any employer or other person acting on behalf of an employer, who violates, or causes to be violated, any provision regulating minimum wages or hours and days of work in any order of the Industrial Welfare Commission, or violates, or causes to be violated, Sections 203, 226, 226.7, 1193.6, 1194, or 2802, may be held liable as the employer for such violation.

(b) For purposes of this section, the term “other person acting on behalf of an employer” is limited to a natural person who is an owner, director, officer, or managing agent of the employer, and the term “managing agent” has the same meaning as in subdivision (b) of Section 3294 of the Civil Code.

(c) Nothing in this section shall be construed to limit the definition of employer under existing law.

Here, the Court has found no liability under the causes of action above and therefore finds no liability as to Gibbs as an “other person acting on behalf of an employer.”

Therefore, the Court sustains the demurrer as to Gibbs.

No Leave to Amend

A demurrer cannot be sustained without leave to amend where it appears that the facts alleged establish a cause of action under any possible legal theory or it is reasonably possible that the plaintiff can amend the complaint to allege any cause of action. (Canton Poultry & Deli, Inc v. Stockwell, Harris, Widom, and Woolverton (2003) 109 Cal.App.4th 1219, 1226)

Here, Plaintiff has not demonstrated a reasonable possibility of curing these defects, as no opposition has been filed, and the Court sustains the demurrer without leave to amend.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the

proceedings.